

Vijay Shankar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 January 2019 · WRIT - C No. 1520 of 2019 · **Writ disposed; petitioner relegated to Clause 6.14; recovery kept in abeyance pending Executive Engineer's decision.**

HEADNOTE

A consumer facing a recovery citation for electricity dues who seeks installment facility on the ground of financial distress is to approach the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The High Court will not quash the citation on merits; it directs a hearing and decision in accordance with law, keeping recovery in abeyance meanwhile.

FACTUAL SUMMARY

The petitioner, Vijay Shankar Singh, approached the Allahabad High Court seeking quashing of a recovery citation dated 19 November 2018 under which Rs. 1,15,241 was sought to be recovered as electricity dues. He stated that he was facing acute financial crisis and was ready to deposit the amount if suitable installments were fixed. The contesting respondents were officers of the electricity distribution corporation at Electric Distribution Division, Robertsganj, Sonbhadra.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment-facility

HOLDING

A consumer seeking installment facility against a recovery citation for electricity dues has a remedy under Clause 6.14 of the Electricity Supply Code, 2005 by approaching the Executive Engineer. The writ was disposed of with a direction that if the petitioner appeared before the authorised Executive Engineer, Electric Distribution Division Robertsganj, Eastern Electricity Distribution Corporation Limited, Sonbhadra, with a certified copy of the order and a representation on 31 January 2018 at 11:00 a.m., the Executive Engineer was to hear him and decide the representation in accordance with law within 15 days. Subject to that compliance, recovery under the citation dated 19 November 2018 was to remain in abeyance and be subject to the Executive Engineer's final order. The Court did not adjudicate the claim on merits.

¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION AND OF THE ELECTRICITY DUES CLAIM

The Court expressly recorded that it had not adjudicated the petitioner's claim on merit and neither quashed nor upheld the recovery citation dated 19.11.2018. ¶ 8